

SOFTWARE AS A SERVICE (SAAS) AGREEMENT

SOFTWARE AS A SERVICE (SAAS) SUBSCRIPTION AGREEMENT

This SaaS Agreement (the "Agreement") is made effective 23 January 2025 by and between Apex Innovations LLC ("Provider") and Crestview Financial ("Customer").

- SERVICES.** Provider grants Customer a non-exclusive, non-transferable license to access and use Provider's proprietary cloud-based software platform (the "Service") during the Term. The Service is hosted on Provider's servers and accessed via the internet.
- SUBSCRIPTION FEES.** Customer shall pay Provider the annual subscription fee of \$265,000.00. Invoices are payable net thirty (30) days from the invoice date. Late payments will incur interest at a rate of 1.5% per month.
- DATA PRIVACY AND SECURITY.** Provider will maintain robust administrative, physical, and technical safeguards for the protection of the security, confidentiality, and integrity of Customer Data. Provider will not modify, disclose, or access Customer Data except as required to provide the Service or to prevent technical issues.
- INTELLECTUAL PROPERTY.** Provider retains all rights, title, and interest in and to the Service, including all related intellectual property rights. Customer retains all rights, title, and interest in and to all Customer Data imported into the Service.
- TERM AND TERMINATION.** This Agreement commences on the Effective Date and continues for a period of twelve (12) months (the "Initial Term"). It will automatically renew for successive twelve (12) month periods unless either party gives written notice of non-renewal at least sixty (60) days before the end of the current term.
- LIMITATION OF LIABILITY.** In no event shall either party's aggregate liability arising out of or related to this Agreement exceed the total amount paid by Customer hereunder in the twelve (12) months preceding the incident giving rise to the liability.